

Certificates of stock issued by company to whom and how issued appearing on the books of the company as owner of any shares of stock fully paid on, a certificate for such shares, under the seal of the company, signed by the president and countersigned by the secretary, treasurer or cashier.

Commencement 2. This act shall be in force from its passage.

CHAP. 301.—JOINT RESOLUTIONS Proposing Amendments to Sections one, two, three and four of the seventh Article of the Constitution of this Commonwealth in Relation to County Organization, for Publishing said Amendments and Certifying the same to the next General Assembly.

Agreed to March 31, 1873.

Amendments to be proposed to the Constitution of State 1. Resolved, by the senate and house of delegates (a majority of the members elected to each of the two houses agreeing thereto), That the following amendments, and the schedule annexed thereto, be and they are hereby proposed to the constitution of Virginia, and are hereby referred to the general assembly, to be chosen at the next general election of senators and members of the house of delegates, for its concurrence, in conformity with Article XII of said constitution, viz:

Referred to next general assembly

First and second sections of 7th Article to be stricken out Strike from the constitution of Virginia the first and second sections of the seventh Article, in reference to county organizations, which are in these words:

County organizations.

Section providing for election of county officers Sec. 1. There shall be elected by the qualified voters of the county, one sheriff; one attorney for the commonwealth, who shall also be the commonwealth's attorney for the circuit court; one county clerk, who shall also be the clerk of the circuit court, except that in counties containing fifteen thousand inhabitants, there may be a separate clerk for the circuit court; one county treasurer, and one superintendent of the poor. And there shall be appointed, in the manner provided for in Article VIII, one superintendent of schools: provided, that counties containing less than eight thousand inhabitants may be attached to adjoining counties for the formation of districts for superintendents of schools: provided, also, that in counties containing thirty thousand inhabitants there may be appointed an additional superintendent of schools therein. All regular elections for county officers shall be held on the first Tuesday after the first Monday in November, and all officers elected or appointed under this provision shall enter upon the duties of their offices on the first day of January next succeeding their election, and shall hold their respective offices for the term of three years, except that the county and circuit court clerks shall hold their offices for four years.

Townships.

Sec. 2. Each county of the state shall be divided into so many compactly located townships as may be deemed necessary, not less than three: provided, that after three have been formed no additional township shall be made containing less than thirty square miles. Each township shall be known as the township of ———, in the county of ———, and may sue and be sued by such title. In each township there shall be elected, annually, one supervisor, one township clerk, one assessor, one collector, one commissioner of roads, one overseer of the poor, one justice of the peace, who shall hold his office three years, one constable, who shall hold his office three years: provided, that at the first election held under this provision, there shall be three justices of the peace and three constables elected, whose terms shall be one, two, and three years, respectively. All regular elections for township officers shall take place on the fourth Thursday in May, and all officers so elected shall enter upon the duties of their respective offices on the first day of July next succeeding their election. The supervisors of each township shall constitute the board of supervisors for that county, and shall assemble at the court-house thereof on the first Monday in December in each year, and proceed to audit the accounts of said county, examine the books of the assessors, regulate and equalize the valuation of property, fix the county levies for the ensuing year, apportion the same among the various townships, and perform such other duties as shall be prescribed by law.

Section providing for division of counties into townships

Township officers

And insert, in lieu thereof, the following:

ARTICLE VII.

County organizations.

1. There shall be elected by the qualified voters of the county, one sheriff; one attorney for the commonwealth, who shall also be the commonwealth's attorney for the circuit court; one county clerk, who shall be clerk of the circuit court, except that in counties containing fifteen thousand inhabitants there may be a separate clerk for the circuit court; one county treasurer; and so many commissioners of the revenue as may be provided by law; and there shall be appointed in a manner to be provided by law, one superintendent of the poor and one county surveyor; and there shall also be appointed in the manner provided for in article eight, one superintendent of schools. All regular elections for county officers shall be held on the fourth Thursday in May, and all officers elected or appointed under this provision shall enter upon the duties of their offices on the first day of July next succeeding their election, and shall hold their respective offices for the term of four years, except that county and circuit court clerks shall hold their offices for six years.

Clauses proposed to be inserted in lieu of sections stricken out
Officers to be elected

When elections to be held

Section 2. Each county of the state shall be divided into so

Magisterial districts proposed many compactly located magisterial districts as may be deemed necessary, not less than three: provided, that after these have been formed, no additional districts shall be made containing less than thirty square miles. Each magisterial district to be known as _____ magisterial district of _____ county. In each district there shall be elected one supervisor, three justices of the peace, one constable and one overseer of the poor, who shall hold their respective offices for the term of two years. All regular elections for magisterial district officers shall take place on the fourth Thursday in May, and all officers so elected shall enter upon the duties of their respective offices on the first day of July next succeeding their election. The supervisors of the districts shall constitute the board of supervisors for that county, whose duty it shall be to audit the accounts of the county, examine the books of the commissioners of the revenue, regulate and equalize the valuation of property, fix the county levies of the ensuing year, and perform any other duties required of them by law.

Officers to be elected in magisterial districts

Board of supervisors and their duties

Third section of same article relative to school districts proposed to be stricken out Strike out the third section of the same article, which is in these words:

School districts.

Section 3. Each township shall be divided into so many compactly located school districts as may be deemed necessary: provided, that no school district shall be formed containing less than one hundred inhabitants. In each school district there shall be elected or appointed annually one school trustee, who shall hold his office three years: provided, that at the first election held under this provision there shall be three trustees elected, whose terms shall be one, two, and three years, respectively.

And insert in lieu thereof the following:

Schools districts.

Section relative to school districts to be substituted Section 3. Each magisterial district shall be divided into so many compactly located school districts as may be deemed necessary: provided, that no school district shall be formed containing less than one hundred inhabitants. In each school district there shall be elected or appointed, annually, one school trustee, who shall hold his office three years: provided, that at the first election held under this provision there shall be three trustees elected, whose terms shall be one, two, and three years, respectively.

Strike out section relative to road districts From the same article strike out the fourth section, which is in these words:

Road districts.

Sec. 4. Each township shall be divided into one or more road districts. In each road district there shall be elected annually, one overseer of roads, under whose direction the roads shall be kept in repair at the public expense in a mode prescribed by law.

Schedule.

2. The legally constituted officers of the several counties and townships of the state, at the date of the ratification of these amendments by the people, shall continue to discharge the duties of their respective offices until the officers provided for by these amendments shall have been elected, or appointed, and qualified; and all bonds or recognizances entered into by any county or township officer for the faithful discharge of the duties of his office shall remain valid and binding, and all rights and liabilities under the same shall continue, and may be prosecuted as provided by law.

Officers to continue to discharge duties

Bonds, recognizances, &c., to remain valid

3. Resolved, That the clerk of the house of delegates or the clerk of the senate be authorized and required, or if a vacancy happen in both of said offices, the presiding officer of either house of the general assembly, be authorized and requested to cause the proposed amendments and these resolutions to be published in some newspaper published in the city of Richmond for three months previous to the time of choosing the members of the general assembly at the next general election of senators and members of the house of delegates.

Amendments to be published

4. Resolved, That the clerk of the senate and the clerk of the house of delegates be required to transmit to the general assembly to be chosen at the next general election of senators and members of the house of delegates a certified copy of said amendments and these resolutions, together with a certificate of publication by the publisher of the newspaper in which the proposed amendments shall have been published.

Amendments to be certified to next general assembly

CHAP. 302.—An ACT to Incorporate Land Companies in the respective Counties in the State of Virginia.

Approved March 31, 1873.

1. Be it enacted by the general assembly of Virginia, That any five or more persons resident in any county of this state, and such other persons as may hereafter be associated with them and their successors, after filing notice of same with the secretary of the commonwealth, shall be and they are hereby created a body politic and corporate, under the name and style of their respective county land company, and are hereby invested with power and authority to receive subscriptions in land and moneys, and to dispose of all lands so received to non-resident actual settlers in such manner as may be prescribed by the by-laws of said company not inconsistent with this charter.

Land companies in any county incorporated; notice to be filed with secretary of commonwealth

General powers of corporation

2. The capital stock of said company shall not be less than five thousand dollars, and may be increased to one hundred thousand dollars, to be divided into shares of twenty-five dollars each, to be subscribed for under the direction of the corporators aforesaid for their respective county after reasonable public notice. Any person may subscribe for stock in any one

Capital